HOW TO MANAGE CASE LOAD

In last one year, the Chief Justice of India has taken several initiatives, including upgrade of the Integrated Case Management System to reduce pendency of cases in the Supreme Court

› Cases verified on Tuesday, Wednesday, Thursday are listed the next Monday. Matters verified on Friday, Saturday, Monday are listed the following Friday

› On Mondays and Fridays only miscellaneous, fresh and after notice matters are posted. Every day 10 transfer petitions along with 10 bail applications are listed before each court.

› Special Benches have been set up in the SC for dealing with criminal matters, and those related to Motor Accident Claims Tribunal, land acquisition, arbitration, direct and indirect taxes

› A large number of matters which were defective for more than 90 days and where the advocates had not refiled the same have been put before the chamber judge for listing and minimising pendency

› Targets of verification of matters have been increased from the existing number of approximately 150 matters per day to 250 matters daily

› Matters in which soft copy has not been filed by the advocates are now to be listed before the court by scanning such matters in-house and without waiting for the scanned copy from advocate

A REFORMIST BENT

› The CJI introduced initiatives like digitisation of records, transcription of cases by using AI, online centres for faster services, an electronic database of judgments and onboarding of SC cases with the National Judicial Data Grid

› Starting from September 27, SC is live-streaming all its constitutional bench hearings

› A set of parameters that the Collegium has to consider for elevating High Court judges to the SC has been formulated

› To make courts gender sensitive, the CJI launched a handbook to eradicate gender stereotypes from judicial discourse. Universal rest rooms created in SC complex to make it accessible to LGBTQIA+ community

› The SC appointed for the first time a sign language interpreter for a deaf lawyer

raised by the law ministry. What caused unease in the executive was that the reason for its misgiving—Kirpal's sexual orientation—was made public. If Rijiju, who was shunted out of office in May, was vocal about the collegium's writ over appointments to the higher judiciary, the CJI and his brother judges faulted the Centre for its selective and tardy responses to collegium recommendations. Amid this turf war, the CJI sought to make the collegium's functioning more transparent.

The institutional conflict manifested itself again recently, with Chandrachud's power as Master of the Roster coming under the scanner. The deletion of a case related to the delay in judges' appointment from Justice Kaul's hearing list on December 5, without his consent, raised suspicion that the Centre might have influenced the listing. At each previous hearing, Justice Kaul had admonished the government. Senior advocate Dushyant Dave wrote to the CJI on December 6, pointing out that many cases heard by certain benches were shifted out and listed before other benches. Chandrachud sought to dismiss the inference, but a media report highlighted how eight politically sensitive cases were moved to the court of a particular judge in four months, in violation of rules. Several Opposition leaders believe the CJI has been conservative in taking on the Centre on key institutional and political issues. "He has been quick in upholding individual liberty but avoids direct confrontation with the government," says a Congress Rajya Sabha MP. Even the Article 370 judgment came in for tough words from legal luminaries for being "bad in law". The CJI's stance is that his judicial conduct cannot be scrutinised through public expectations—even though bringing the law closer to the public is part of his legacy. The verdict, as always, belongs to the future. ■